TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
DECEMBER 17, 2018
MINUTES

Green arrows ▶ in Minutes are hyperlinks to the recording

Attachment 1—Staff Report

Present: Joseph Belton, Chair, Barry Wolff, Stephen Duke, Glyn Cowden.
Absent: David Rubin, Bobby Carrier, Stephen Wood.
Staff: Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6 pm.

A. Approval of Agenda

▶ *Mr. Wolff moved for approval. Mr. Cowden seconded the motion. All in favor.*

B. Approval of Minutes

▶ *Mr. Wolff moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.*

Mr. Belton reviewed the procedures with the public.

C. Public Comment

There being no comment, Mr. Belton continued with the agenda.

D. General Correspondence

1. **Request for one-year extension of Case V-41-05 in accordance with §156.049 Vested Rights**

▶ *Mr. Wolff moved for approval of the request. Mr. Duke seconded the motion. All in favor.*

E. Administration of Oath

▶ Mr. Belton administered the oath to those speaking.

F. Business

1. **Case V-30-18, 933 South Shem Drive, TMS# 535-15-00-047, Appeal from the strict application of §156.303 to allow for an approximately five (5) foot front yard encroachment for garage addition.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Hilton Googe, architect, reviewed the request with the Board. Mr. Vincent Kaiser, owner, stated that this home is the only one on the street that does not have a garage and has access to back yard. Mr. Kaiser stated that he has letters from neighbors in favor of the request.

Mr. Wolff stated that he is having difficulty determining the hardship requirement and suggested that the request does not meet the criteria for the variance. He stated that there are many homes in Mount Pleasant that do not have garages. He suggested that there is no hardship.

Mr. Belton suggested that preservation of the trees could be considered a hardship. Mr. Kaiser stated that the current drive does encroach into the tree protection zone, so there is no way to access the rear yard to construct the garage without encroaching into the tree protection zone. Mr. Belton suggested that the historic tree does pose a hardship. Mr. Robertson stated that the request would not meet the prohibition of the property as it is zoned for residential use, but the Board would have to determine if there is a hardship.

Mr. Wolff suggested that as outlined in the statute, the application does not meet the hardship.

Mr. Belton disagreed and suggested that there is a natural barrier that prevents the garage from being placed in the back yard within the setbacks.

Mr. Duke stated that the applicant has considered other options, but none worked without needing a variance. He suggested that the garage would enhance the home as well as the neighborhood.

Mr. Cowden asked how long they have owned the home. Mr. Kaiser answered that they moved to this home approximately four years ago. Mr. Cowden asked if the home would be renovated after the garage is constructed. Mr. Kaiser answered in the negative and stated that they are in the process of making

interior renovations. He stated that they would like to complete the garage while renovating other areas of the home.

Mr. Belton suggested that the property restricts utilization because of the location of the tree and the tree protection zone.

Mr. Wolff suggested that this is a difficult decision. He suggested that even though the neighbors are in favor of the request, the request does not meet the hardship requirements.

▶ *Mr. Wolff moved for denial of the request based on the findings that there is not a hardship as the property can be utilized for its purpose and zoning. Mr. Cowden seconded the motion. Motion failed on a 2 to 2 vote with Mr. Wolff and Mr. Cowden in favor; Mr. Belton and Mr. Duke opposed.*

Mr. Belton suggested that approval of this request would not set a precedent. He suggested that the alternative proposed is a good compromise to locating the garage in the back yard where there would be impact to a historic tree.

Mr. Wolff asked if the Board sets precedent. Mr. Belton answered that the Board's previous decisions can be referred to when determining future decisions. Mr. Robertson stated that findings of facts for each determination would be specific to a particular case. Mr. Wolff asked where the property line is located. Mr. Googe showed the location for the Board in the pictures provided with the application. Mr. Wolff asked if the driveway could be moved. Mr. Googe answered that his understanding is that there cannot be any encroachment into the tree protection zone, so the driveway could not be moved.

Mr. Belton asked if pervious material could be used for the driveway. Mr. Robertson answered that this would need to be approved by the Town arborist.

Mr. Wolff asked if there is an ordinance that states that the tree roots cannot be driven over. Mr. Robertson answered in the affirmative and stated that there cannot be any encroachment into the tree protection zone.

Mr. Belton asked if having the garage in the back could be accomplished. Mr. Googe answered that they would prefer the garage located in the rear yard. Mr.

Belton asked if the Town arborist was consulted to determine if the garage could be located in the rear. Mr. Googe answered in the negative.

Mr. Cowden asked if the garage has to be located in the front. Mr. Googe answered in the negative. Mr. Kaiser stated that they proposed the garage in the front as they were aware that the tree protection zone would prevent the garage from being located in the rear.

Mr. Wolff stated that he does not see how this application meets the established criteria.

Mr. Robertson suggested that one solution might be to condition the approval to require pervious material within the tree protection zone or to require an arborist report.

Mr. Wolff state that he would be in favor of a pervious drive with the approval from the Town arborist.

Mr. Belton determined that the Board was deadlocked and stated that the application would, therefore, be deferred to a subsequent meeting.

2. **Case V-31-18, Wash Wizard, 2727 Hwy 17N, TMS# 578-00-00-096, Appeal from the strict application of §156.107 and 156.201 to request ex-post facto approval of encroachment of existing building into required buffer.**

Mr. Robertson stated that the application has requested deferral due to survey discrepancies.

The Board accepted the request for the deferral.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 6:47 pm.

Submitted by,
L. Lynes
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